RESOLUTION NO. 2026-32

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF EUREKA, CALIFORNIA, CALLING FOR THE HOLDING OF A GENERAL MUNICIPAL ELECTION ON TUESDAY, NOVEMBER 3, 2026 FOR THE SUBMISSION OF A PROPOSED CHARTER AMENDMENT.

WHEREAS, pursuant to authority provided by the California Constitution, Article XI and the Government Code, Title 4, Division 2, Chapter 2 (commencing at § 34450) and the Election Code Division 9, Chapter 3, Article 3 (commencing at § 9255) of the State of California, the City Council of the City of Eureka desires to submit to the voters a proposed charter amendment relating to Mayor and Council Salaries; and

WHEREAS, the City Council is authorized and directed by statute to submit the proposed charter amendment to the voters;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF EUREKA, CALIFORNIA, DOES RESOVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1: That pursuant to the California Constitution, Article XI and the Government Code, Title 4, Division 2, Chapter 2 (commencing at § 34450) and the Election Code Division 9, Chapter 3, Article 3 (commencing at § 9255) of the State of California, there is called and ordered to be held in the City of Eureka, California, on Tuesday, November 3, 2026, a General Municipal Election for the purpose of submitting the following proposed charter amendment:

"Shall Sections 310 and 405 of the Eureka City Charter be amended to authorize the Eureka City Council to establish compensation for the Mayor and Councilmembers by ordinance, including an initial salary of $1,250 per month for the Mayor and $1,000 per month for Councilmembers, with future annual adjustments subject to review by the Finance Advisory Committee?"	YES
	NO

SECTION 2. That the text of the charter amendment submitted to the voters is (attached as Exhibit A.)

SECTION 3. That the vote requirement for the measure to pass is a majority (50%+1) of the votes cast.

SECTION 4. That the ballots to be used at the election shall be in form and content as required by law

SECTION 5. That the City Clerk is authorized, instructed and directed to procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

SECTION 6. That the polls shall be open at seven o'clock a.m. of the day of the election and shall remain open continuously from that time until eight o'clock p.m. of the

same day when the polls shall be closed, pursuant to Election Code § 10242 except as provided in § 14401 of the Elections Code of the State of California.

SECTION 7. That in all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections.

SECTION 8. That notice of the time and place of holding the election is given and the City Clerk is authorized, instructed and directed to give further or additional notice of the election, in time, form and manner as required by law.

SECTION 9. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Eureka in the County of Humboldt, State of California, on the 16th day of June 2026 by the following vote:

AYES: COUNCILMEMBERS CASTELLANO, MOULTON, FERNANDEZ, BAUER, CONTRERAS-DELOACH
NOES: COUNCILMEMBERS
ABSENT: COUNCILMEMBERS

Kim Bergel, Mayor of the City of Eureka

Attest:

Pamela J. Powell, City Clerk

Approved as to Administration:

Miles Slattery, City Manager

Approved as to form:

Robert N. Black, City Attorney

RESOLUTION NO. 2026- 33

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF EUREKA, CALIFORNIA, REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF HUMBOLDT TO PROVIDE ELECTION SERVICES AND TO CONSOLIDATE THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THAT DATE PURSUANT TO SECTION 10403 OF THE ELECTIONS CODE.

WHEREAS, the City Council of the City of Eureka called a General Municipal Election to be held on Tuesday, November 3, 2026 for the purpose of submitting to the voters a question relating to the City of Eureka Charter; and

WHEREAS, it is desirable that the General Municipal Election be consolidated with the Statewide General Election to be held on the same date and that within the city the precincts, polling places and election officers of the two elections be the same, and

WHEREAS, it is desirable that the Election Department of the County of Humboldt canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF EUREKA DOES HEREBY RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of § 10403 of the Elections Code, the Board of Supervisors of the County of Humboldt is hereby requested to consent and agree to consolidation of a General Municipal Election with the Statewide General Election on Tuesday, November 3, 2026 that the following measure is to appear on the ballot as follows:

"Shall Sections 310 and 405 of the Eureka City Charter be amended to authorize the Eureka City Council to establish compensation for the Mayor and Councilmembers by ordinance, including an initial salary of $1,250 per month for the Mayor and $1,000 per month for Councilmembers, with future annual adjustments subject to review by the Finance Advisory Committee?"	**YES**
	NO

SECTION 2. That the Board of Supervisors is requested to issue instructions to the Election Department of the County of Humboldt to take any and all steps necessary for the holding of the consolidated election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

SECTION 3. That the Election Department of the County of Humboldt is authorized to canvass, or cause to be canvassed, the returns of the General Municipal

Election on said elective offices, and to certify such canvass to the City Council.

SECTION 4. That the City of Eureka recognizes that additional costs will be incurred by the County by reason of this consolidation and agrees to reimburse the County for any costs.

SECTION 5. That the City Clerk is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the Election Department of the County of Humboldt.

SECTION 6. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Eureka, County of Humboldt, State of California, on the 16th day of June, 2026, by the following vote:

AYES: COUNCILMEMBERS CASTELLANO, MOULTON, FERNANDEZ, BAUER, CONTRERAS-DELOACH
NOES: COUNCILMEMBERS
ABSENT: COUNCILMEMBERS

Kim Bergel
Mayor of The City of Eureka

ATTEST:

Pamela J. Powell
City Clerk

APPROVED AS TO FORM:

Robert Black
City Attorney

APPROVED AS TO ADMINISTRATION:

Miles Slattery
City Manager

RESOLUTION NO. 2026- 41

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF EUREKA, CALIFORNIA, REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF HUMBOLDT TO PROVIDE ELECTION SERVICES AND TO CONSOLIDATE THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THAT DATE PURSUANT TO SECTION 10403 OF THE ELECTIONS CODE.

WHEREAS, the City Council of the City of Eureka called a General Municipal Election to be held on Tuesday, November 3, 2026 for the purpose of submitting to the voters a question relating to the City of Eureka Charter; and

WHEREAS, it is desirable that the General Municipal Election be consolidated with the Statewide General Election to be held on the same date and that within the city the precincts, polling places and election officers of the two elections be the same, and

WHEREAS, it is desirable that the Election Department of the County of Humboldt canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF EUREKA DOES HEREBY RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

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SECTION 2. That the Board of Supervisors is requested to issue instructions to the Election Department of the County of Humboldt to take any and all steps necessary for the holding of the consolidated election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

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Election on said elective offices, and to certify such canvass to the City Council.

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SECTION 6. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Eureka, County of Humboldt, State of California, on the 16th day of June, 2026, by the following vote:

AYES: COUNCILMEMBERS CASTELLANO, MOULTON, FERNANDEZ, BAUER, CONTRERAS-DELOACH
NOES: COUNCILMEMBERS
ABSENT: COUNCILMEMBERS

Kim Bergel
Mayor of The City of Eureka

ATTEST:

Pamela J. Powell
City Clerk

APPROVED AS TO FORM:

Robert Black
City Attorney

APPROVED AS TO ADMINISTRATION:

Miles Slattery
City Manager

City Attorney's Impartial Analysis

Measure H

The following impartial analysis of the measure was prepared by the Eureka City Attorney:

Currently, the Charter of the City of Eureka fixes the salary of the Mayor at $625 per month and that of each of the five Councilmembers at $500 per month. These levels were enacted by Charter amendment on June 7, 1988 and have not been changed since then. To change the salary provisions requires another Charter amendment, such as Measure H.

If adopted by the voters, Measure H would allow the City Council to adopt an ordinance that may initially increase the salary levels to $1250 per month for the Mayor and $1000 per month for Councilmembers. Because of the timelines for the effective date of any new ordinance, these increases could take effect in January, 2027.

Measure H would also permit future annual adjustments to the salaries by adoption of new ordinances, subject to prior review by the City's Finance Advisory Committee.

A "yes" vote on Measure H is a vote to enact a Charter amendment that would allow the Mayor's and Councilmembers' salaries to increase by ordinance new limits and thereafter to be adjusted annually following input from the Finance Advisory Committee.

A "no" vote is a vote against the enactment of the Charter amendment and to retain the current salary limits.

/s/ Robert N. Black
City Attorney
City of Eureka